IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
COMMERCIAL COURT (KBD)

Claim No. CL-2026-000204

B E T W E E N :

CASPIAN TECHNOLOGIES LIMITED

Claimant

- and -

HARBURN UTILITIES PLC

Defendant

DEFENCE AND COUNTERCLAIM

DEFENCE

1. Save where expressly admitted, the Defendant joins issue with the Claimant on the Particulars of Claim and requires the Claimant to prove each allegation.

2. Paragraphs 1 to 2 are admitted. Paragraphs 3 to 6 are admitted save that it is denied that the availability service level was the sole and exclusive remedy for the defects of which the Defendant complains, which went to the substance and fitness for purpose of the platform rather than to mere availability.

3. It is admitted that Go-Live occurred on 1 July 2024. It is denied that the platform performed as warranted. From around February 2025 the Defendant experienced recurring data-integrity problems, including the mis-mapping of emission factors in the SCADA ingest and the duplication of metering records, which materially undermined the reliability of the Defendant's regulatory reporting.

4. The Defendant raised these matters repeatedly with the Claimant's support team. The Claimant failed to resolve them. The July 2025 connector outage was the culmination of these failures, not, as alleged, the consequence of the Defendant's own credential rotation, which had been notified to the Claimant.

5. By reason of the foregoing the Claimant was in material breach of clauses 5.1 and 6.2 and of the warranties in Schedule 3. The Defendant was entitled to and did terminate the Agreement on 8 August 2025. The Defendant denies that its termination was wrongful or repudiatory.

6. As to the invoices, the Defendant admits non-payment but avers that it was entitled to withhold payment by reason of the Claimant's breaches, and/or to set off the sums claimed against the Defendant's counterclaim.

7. It is denied that the Claimant has suffered the loss alleged or any loss. The claim for £762,900 is not admitted; the Claimant is put to proof of its avoided costs and of its alleged inability to mitigate. In any event the Claimant's recovery is limited by clause 9.4.

COUNTERCLAIM

8. The Defendant repeats paragraphs 1 to 7 above. By reason of the Claimant's breaches, the Defendant has suffered loss and damage.

9. The Defendant was required to engage a third-party assurance provider to re-perform its FY2024 emissions reporting at a cost of £214,000, and incurred internal management time and remediation costs of £168,500. The Defendant further claims wasted subscription and implementation fees of £258,000 referable to the period during which the platform was not fit for purpose.

10. The Defendant claims £640,500 by way of damages, together with interest pursuant to section 35A of the Senior Courts Act 1981, and costs.

MARCUS WEBB

Counsel

Statement of Truth. The Defendant believes that the facts stated in this Defence and Counterclaim are true. Signed by Iain Sturrock, General Counsel of the Defendant, on 27 March 2026.

Pemberton Rowe LLP, 40 Gracechurch Street, London EC3V 0BT — Solicitors for the Defendant. Ref: AW/HARB/0091.

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